



Maritime &
Coastguard
Agency

Guidance

MIN 725 (M) Electronic reporting of persons on board passenger ships

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Summary

This MIN outlines recent changes to the electronic reporting requirement for persons counting as introduced by the Merchant Shipping (Counting and Registration of Persons on Board Passenger Ships) (Amendment) Regulations 2021. The electronic reporting requirement in regulations 5 and 6 of the Merchant Shipping (Counting and Registration of Persons on Board Passenger Ships) Regulations 1999 (S.I. 1999/1869) will not be enforced while a suitable system is established.

1. Introduction/background

1.1 The Merchant Shipping (Counting and Registration of Persons on Board Passenger Ships) Regulations 1999 (S.I. 1999/1869) (“the 1999 Regulations”) require that all passenger ships, when leaving any landing point in the United Kingdom, has a system capable of counting all persons on board. Passenger ships sailing on voyages of over 20 nautical miles at sea need to collect additional items of data of all persons on board (as detailed in paragraph 2.3). This information must be transmitted to a designated passenger registrar, who is responsible for logging the passenger information.

1.2 Originally, there was no set standard format with which persons on board information should be reported. However, the Merchant Shipping (Counting and Registration of Persons on Board Passenger Ships) (Amendment) Regulations 2021 amended the 1999 Regulations to include a requirement for persons details to be reported electronically from 20 December 2023. Persons numbers only were to be reported using either the Automatic Identification System (AIS) or the National Maritime Single Window (NMSW). Vessels on voyages of over 20 nautical miles would need to report additional persons data through the NMSW.

1.3 In 2023, The Merchant Shipping (Counting and Registration of Persons Onboard Passenger Ships) Regulations 2023 delayed the

deadline for electronic reporting until 20 December 2025. Information on the other amendments can be found in MSN 1794.

1.4 In early 2025, the Maritime and Coastguard Agency (MCA) concluded that the NMSW would not be suitable for the purposes of the Regulations. The MCA are therefore in the process of sourcing an alternative solution to allow operators to comply with the Regulations.

2. Persons Counting Requirements

2.1 The requirement of recording and reporting passenger numbers and, where necessary, personal details of passengers onboard so they are available should an incident occur, originated in Chapter III, Regulation 27 of the International Convention for the Safety of Life at Sea (SOLAS). This requirement was adopted in 1995, for passenger ships on international voyages, and implemented into EU law through Council Directive 98/41/EC.

2.2 The 1999 Regulations implemented Directive 98/41/EC and took effect on 22 July 1999. The 1999 Regulations apply to all United Kingdom passenger ships (i.e. ships certificated to carry more than 12 passengers), both seagoing and non-seagoing, wherever they were, and to all other passenger ships whilst in United Kingdom waters.

2.3 Passenger ships to which the 1999 Regulations apply need to collect and report numbers of persons on board. Passenger ships sailing on voyages of over 20 nautical miles at sea need to also collect additional items of persons data. These are:

- family name/s;
- forenames;
- gender;
- nationality;
- date of birth;
- when volunteered by a passenger, information concerning special care or assistance that might be needed in an emergency; and,
- when volunteered by the passenger, a contact number in case of an emergency.

This information must be transmitted to a designated passenger registrar, where it can be passed to His Majesty's Coastguard should an incident

occur.

2.4 The Merchant Shipping (Counting and Registration of Persons on Board Passenger Ships) (Amendment) Regulations 2021(S.I. 2021/81) (“the 2021 Regulations”) implemented Directive 2017/2109/EU, making amendments to the 1999 Regulations. These included the introduction of an electronic reporting obligation for seagoing passenger ships to report data through the NMSW or (for persons numbers only) the vessel’s AIS.

2.5 The NMSW was developed by HM Border Force for the purposes of reporting information relating to the FAL Convention (the International Maritime Organisation’s Facilitation of International Maritime Traffic), which promotes the electronic communication of diverse ship related information for international voyages. This does not cover the persons counting requirements but, as Border Force are collecting persons data for their own purposes, it seemed logical to co-ordinate with them and use the same system.

2.6 The Merchant Shipping (Counting and Registration of Persons Onboard Passenger Ships) (Amendment) Regulations 2023 (S.I. 2023/787) deferred the electronic reporting obligation from 20 December 2023 to 20 December 2025.

3. The Current Position

3.1 It has become apparent that the NMSW will not be suitable for the purposes of persons counting, and so the MCA are investigating alternative solutions.

3.2 At present, the most likely way forward is to use the Consolidated European Reporting System (CERS), which is already used for other types of electronic reporting, as outlined in MSN 1899. Currently, CERS does not have the functionality to record persons data.

3.3 The MCA is working to provide for the electronic reporting of persons data as soon as possible, through CERS or otherwise, but does not consider that the functionality to electronically report persons data will be ready in time for the electronic reporting obligation deadline of 20 December 2025. Accordingly, the MCA will not take enforcement action for failure to comply with the electronic reporting obligation from 20 December 2025 until further notice.

3.4 The MCA will communicate how persons data can be recorded electronically as soon as possible. The MCA will take into account the time

needed for ship owners to familiarise themselves with the new system before enforcing the electronic reporting obligation.

3.5 In the meantime, ship owners should continue to collect and report persons numbers and data using their current methods.

More information

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